

ORDER SHEET
IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

Crl. Misc. No.4258-M of 2026

Muhammad Arshad **Versus** The State etc.

S. No. of order/ Proceedings	Date of order/ Proceedings	Order with signature of Judge, and that of parties of counsel, where necessary.
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09.06.2026 Mahar Adnan Nawaz, Advocate for the petitioner.
Mr. Muhammad Ali Shahab, Deputy Prosecutor
General on Court’s call.

In the present matter, the prosecution submitted a Case Review Report under Section 9(7) of the Punjab Criminal Prosecution Service (Constitution, Functions and Powers) Act, 2006 (“CPS Act”) before the learned Magistrate, wherein it was opined that sufficient evidence was not available to prosecute the petitioner in FIR No. 275 dated 27.09.2019, registered under Sections 337A(i), 337F(v), and 34 PPC at Police Station Kohna, District Khanewal. Concurring with the opinion of the concerned Prosecutor, Ms. Saba Razzaq, the learned Magistrate 1st Class, Khanewal, vide order dated 07.01.2020, declined to issue process against the petitioner and consigned the case to the records.

Subsequently, the petitioner applied for issuance of a character certificate before the police authorities but was informed that the aforementioned FIR was still pending trial before the learned Magistrate. The petitioner, therefore, moved an application before the learned Magistrate seeking clarification of the order dated 07.01.2020, praying that he be acquitted under Section 249A Cr.P.C. and that his criminal record be directed to be cleared by the police. This application was dismissed by Ms. Sahar Sajjad, learned Magistrate, vide order dated 22.11.2025. A revision petition filed against the said order also met the same fate, having been dismissed by Mr. Muzammil Sipra, learned Additional

Sessions Judge, Khanewal, vide order dated 04.05.2026. Both these orders are now impugned before this Court.

2. Learned counsel for the petitioner submits that although the petitioner was not summoned to face trial, neither was the case recommended for cancellation nor was the petitioner acquitted under Section 249A Cr.P.C. Consequently, the impugned order of the learned Magistrate 1st Class is a nullity in law, having been passed in the absence of the petitioner. It is further argued that if the learned Magistrate intended to concur with the opinion of the learned Assistant District Public Prosecutor in declining to issue process against the petitioner, then it was incumbent upon the Magistrate, while ordering the stay of criminal proceedings, to pass an order formally discharging the petitioner. Counsel contends that such course of action is mandated by the spirit and scheme of Section 249 Cr.P.C., which is reproduced below: -

249. Power to stop proceedings when no complaint.
In any case instituted otherwise than upon complaint a Magistrate of the first class, or with the previous sanction of the Sessions Judge, may for reasons to be recorded by him, **stop the proceedings at any stage without pronouncing any judgment either of acquittal or conviction**, and may thereupon release the accused.

(Emphasis supplied)

3. Conversely, the learned Deputy Prosecutor General submits that under Section 9(6) of the CPS Act, where investigation remains incomplete and only an interim report is placed before the Court, the prosecution may request that trial proceedings not be commenced. However, when a Case Review Report is submitted under Section 9(7) of the said Act, recommending that the matter is not fit for trial after application of the evidential and public interest tests prescribed in the *Code of Conduct for Prosecutors* (“COCP”) issued by the Prosecutor General under Section 17 of the CPS Act, the Magistrate, upon concurrence with the prosecutor’s opinion, is empowered either to discharge the accused while ordering stay of criminal proceedings under Section 249 Cr.P.C., or to acquit him under Section 249A Cr.P.C., as the circumstances may warrant. In

the instant case, however, the learned Magistrate failed to act in accordance with law. It is therefore submitted that if the petitioner files a fresh application for re-opening of the case, the learned Magistrate may appropriately be directed to pass a fresh order in conformity with the statutory scheme.

4. Heard: record perused.

5. The prosecutorial intervention in routing a case to the Court for trial is not intended as a mere formality to endorse every matter registered, investigated, and recommended by the police. Rather, it serves as a stringent gatekeeping mechanism designed to filter out weak or frivolous cases. In this capacity, the prosecutor may either return the matter to the police for rectification of legal or factual defects, or require fulfillment of evidential prerequisites. This ensures that only cases meeting the requisite standards proceed to trial, thereby preventing weak or frivolous prosecutions from unnecessarily burdening the Court, squandering its valuable time, and inflating the costs of prosecution.

6. It is the duty of the prosecution to ensure that the prosecution of an offender constitutes a proportionate response, meaning that it must be cost-effective and capable of meeting the legitimate expectations of conviction and imposition of adequate sentence. Where these criteria are not satisfied, the matter ought not to be placed before the Court, but rather resolved at the police or prosecutorial level. Prior to the promulgation of the CPS Act, prosecutorial affairs were regulated by the Police and the Law Department in accordance with the procedures laid down in the *Police Rules, 1934* and the *Law Department Manual, 1938* (earlier versions of 1926 and 1929), as reflected in Rules 27.3, 27.4, 27.14, 27.15, etc., of Chapter 27 of the *Police Rules, 1934*. The amendment introduced in 1992 to Section 173 Cr.P.C., requiring that such report be routed to the Court through the prosecutor, was reflective of the legislative intent that a meaningful, fair, and impartial scrutiny of police cases be undertaken by the prosecution. The purpose was to curtail prosecutions to those cases where

sufficient material exists on record to establish the charge against the accused.

7. This legislative purpose was further amplified by the promulgation of the CPS Act in 2006. Under Section 9(4), it is expressly provided that a report under Section 173 Cr.P.C., a request for cancellation of case, or for discharge of an accused or suspect, shall be submitted before the Court through the prosecutor. In terms of Section 13(9)(b), such police reports—whether final or interim, including those recommending cancellation of an FIR or discharge of an accused—must be scrutinized by the prosecutor and processed under Section 9 of the CPS Act.

Section 9(5)(a) empowers the prosecutor to examine such reports or requests and, if found defective, return them within three days to the officer in charge of the police station or the investigating officer for rectification of identified defects. Pursuant to Section 12(2), the officer in charge or investigating officer is bound to comply within the time specified by the prosecutor and remedy the defects pointed out, whether in a police report under Section 173 Cr.P.C., a cancellation report, or a discharge request. Conversely, if the report is found fit for submission, the prosecutor shall file it before the Court of competent jurisdiction under Section 9(5)(b).

Furthermore, where the prosecutor considers that investigation is incomplete, he may, through a Case Review Report under Section 9(7), apply the threshold test set out in paragraph 6 of COCP and request the Court under Section 9(6) not to commence trial on the basis of an interim report due to deficient evidence. However, upon receipt of a complete report under Section 173 Cr.P.C., the prosecutor is required to submit to the Court the results of his scrutiny in writing, indicating the available evidence and the applicability of offences against all or any of the accused, in light of the facts and circumstances of the case.

8. The prosecutor is entrusted with the duty to scrutinize all police reports—whether interim or final—as well as case cancellation reports or requests for discharge of an accused. Although Section 9(7) of the CPS Act employs the word “may,” thereby rendering submission of the result of such scrutiny before the Court optional, the discretion is not unfettered. Where the prosecutor finds that the police conclusion is inconsistent with the record, either in relation to the availability of evidence or the applicability of offences against any of the accused, it becomes obligatory for him to render an informed prosecutorial decision for the assistance of the Court.

Moreover, prosecutors are required to exercise oversight over investigative deficiencies. They must report to the District Public Prosecutor details of any investigation conducted in violation of law or contrary to instructions issued by the Prosecutor General, or not completed within the statutory timeframe without reasonable cause. The District Public Prosecutor, in turn, may inform the head of investigation and the Prosecutor General for appropriate remedial action.

9. This statutory regime is designed to ensure effective presentation of cases before courts of competent jurisdiction. While prosecutors have been entrusted with the role of gatekeepers, they have not been conferred with explicit powers to stop or drop weak cases or those supported by deficient evidence, thereby sparing litigants the ordeal of protracted trials and saving the public exchequer from bearing unnecessary prosecution costs. Such cases ought not to be forwarded to the Courts but returned to the police for appropriate action under the law.

Where a complainant or aggrieved person feels prejudiced by a prosecutorial decision, a remedy should exist to assail such decision before the District Public Prosecutor or the Prosecutor General Punjab. If unsuccessful, the complainant should further be afforded a right of appeal before a court of competent jurisdiction. In the event the Court sets aside the order of the District Public

Prosecutor or the Prosecutor General, the police case may be converted into a private prosecution to be conducted by the complainant without the participation of the prosecution department.

At present, however, through COCP, the Prosecutor General has directed prosecutors to freely tender prosecutorial opinions to the Courts regarding the unfitness of cases for trial. Under Section 9(7) of the CPS Act, the Magistrate or Court is required to give “due consideration” to such submissions before proceeding further. The phrase “due consideration” necessarily entails the recording of reasons for concurrence or disagreement. Where the Court concurs with the prosecutor’s opinion, the law in Punjab contains no specific provision prescribing the further course of action—whether dismissal of the case or consigning it to the records. By contrast, the Khyber Pakhtunkhwa Prosecution Service (Constitution. Functions and Powers) Act 2005 (“KPK Prosecution Act 2005”) is more responsive, providing mechanisms for stopping or dropping proceedings, challenging prosecutorial opinions before higher authorities, ensuring collection of relevant evidence by the police, and initiating action against police officers who fail to comply with prosecutorial directions.

10. As per Section 4 of the KPK Prosecution Act, 2005, the prosecutor, upon receipt of the final report, is empowered to: (i) lodge the same before the competent Court for trial; (ii) withhold it for want of proper evidence and return it to the Investigating Officer with written directions to remove identified deficiencies and resubmit; (iii) withhold prosecution in view of the interests of the victim or legal heirs of the deceased, where reasonable grounds exist to believe that the offence is compoundable—provided that if compounding does not occur within one month, the report shall be lodged before the Court for trial; or (iv) apply, with reasons recorded in writing, to the Court of competent jurisdiction for discharge of the accused if the case is found to be mala fide,

wrongful, or weak from an evidentiary standpoint. The Court may dispose of such application in such manner as it deems fit.

Section 7(a) authorizes the Public Prosecutor, upon expiry of the statutory period for submission of the final report or thereafter, to request the Court to issue warrants for search, seizure, or inspection of evidence, where necessary for proper and thorough investigation. Section 5(f) stipulates that failure of a police officer to comply with any advice, direction, guideline, instruction, or opinion of the District Public Prosecutor or Public Prosecutor shall constitute misconduct under Section 118 of the *Khyber Pakhtunkhwa Police Act, 2017*, and be dealt with accordingly. Further, Section 7(e) empowers the Regional Director, on application of an aggrieved party, to revise any opinion of the District Public Prosecutor at any time before commencement of trial, if found inconsistent with law or facts on record.

The central legislature ought to recognize its responsibility to enact similar provisions, in even more effective form, within the Code, or alternatively, the Provincial Assembly of Punjab should incorporate such measures into the Punjab Criminal Prosecution Service (Constitution, Functions and Powers) Act, 2006.

11. Adverting to the contention of learned counsel for the petitioner, it is argued that once the Magistrate, while concurring with the opinion of the prosecutor, had in fact ordered stay of criminal proceedings under Section 249 Cr.P.C., the accused ought to have been formally discharged when the case was consigned to the records. The learned Deputy Prosecutor General, however, explained that where an order under Section 249 Cr.P.C. is passed in the absence of the accused, it is the duty of the concerned police to inform the accused so that he may avail further recourse. If the accused subsequently files an application, the Magistrate or Court is duty bound to reopen the case, hear both the accused and the prosecutor, and then pass an appropriate order either discharging or acquitting the accused. It was further submitted that an order of discharge may be passed at any stage of the proceedings, and it is

not necessary that such order be made only after issuance of process against the accused under Section 204 Cr.P.C.. Additionally, Section 249 Cr.P.C. authorizes the Magistrate to send a reference to the Sessions Judge for sanction to pass such an order.

12. In view of the foregoing discussion, it is held that where the Magistrate or the Court concurs with the opinion of the prosecutor that a case is not worthy of trial, the Magistrate may exercise powers under Section 249 Cr.P.C. to release the accused by discharging him, either independently or with the prior sanction of the Sessions Judge. In the case of a Sessions trial, such authority vests in the Court of Session under Section 265D Cr.P.C.. Reliance in this respect is placed on cases reported as “CHIEF EHTESABH COMMISSIONER, CHIEF EHTESABH COMMISSIONER’S SECRETARIAT, ISLAMABAD versus AFTAB AHMAD KHAN SHERPAO, EX-CHIEF MINISTER, N.-W.F.P. FESHAWAR and others” (PLD 2005 Supreme Court 408); “MUHAMMAD USMAN GHANI Versus The STATE and others” (PLD 2023 Lahore 291); “Mst. ASHRAFUNNISA Versus THE STATE AND 8 OTHERS” [1983 P Cr. L J 1428 (Kar)]; “UMUBYEVI CHRISTINE Versus THE STATE” (1993 P Cr. L J 1606), or under section 344 of Cr.P.C. Once a case has been consigned to the records under the aforesaid provisions, it remains capable of being reopened upon an application filed by the prosecutor, the aggrieved person, or the accused. Case reported as “Mst. SHIREEN TAJA versus THE STATE and 2 others” (2002 P Cr. L J 159) is referred in this respect. Upon reopening of the case, both the Magistrate and the Court are empowered, on the application of the accused, to exercise jurisdiction under Section 249A Cr.P.C. or Section 265K Cr.P.C., as the case may be, to acquit the accused.

13. In light of the submissions advanced by learned counsel for the petitioner and the explanation furnished by the learned Deputy Prosecutor General, the impugned orders are hereby set aside. The petitioner shall file a fresh application before the learned Magistrate seeking revival of the case. Upon such filing,

the learned Magistrate shall revive the proceedings and, after affording an opportunity of hearing to the prosecution, pass an appropriate order, whether to commence the trial, discharge the accused, or acquit him, as warranted by law.

(MUHAMMAD AMJAD RAFIQ)
JUDGE

Approved for Reporting

Judge

Signed on 15.06.2026

*Tanvir**